

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ELIZABETH RUSSO,

Plaintiff

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. JENNIFER ADAMES, , AND
P.O. RAYMOND DIAZ,

Defendant.
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates **BRONX**
County as the place of trial.

The basis of venue Location of
Occurrence: 1400 Pelham
Parkway South, Bronx, NY
10461

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Melville, New York
November 11, 2022

By: Scott Wolinetz

SCOTT A. WOLINETZ

SCOTT A. WOLINETZ, P.C.

Attorneys for Plaintiff

ELIZABETH RUSSO

150 Broadhollow Road, Suite 208

Melville, New York 11747

(631) 423-1133

TO:

THE CITY OF NEW YORK 100 Church Street, 4th Floor, Communications Unit, New York,
NY 10007

NEW YORK CITY POLICE DEPARTMENT 100 Church Street, 4th Floor, Communications
Unit, New York, NY 10007

P.O. JENNIFER ADAMES, SHIELD NO. 21565 – 46TH PRECINCT 1 Centre Street, Suite
1225, New York, NY 10007

P.O. RAYMOND DIAZ, SHIELD NO. 12449 – 46TH PRECINCT, 1 Centre Street, Suite
1225, New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ELIZABETH RUSSO,

Index No.:

Plaintiff

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. JENNIFER ADAMES, ,
AND P.O. RAYMOND DIAZ,

Defendant.

-----X

Plaintiff(s) **ELIZABETH RUSSO** by her attorney(s), SCOTT A. WOLINETZ, P.C.,

complaining of the Defendant(s), respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, Plaintiff was, and still is, a resident of the County of Putnam, City of Patterson and State of New York.
2. That at all times hereinafter mentioned, the defendant **THE CITY OF NEW YORK** was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, the defendant **NEW YORK CITY POLICE DEPARTMENT** was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

4. That at all times hereinafter mentioned, the defendant **P.O. JENNIFER ADAMES, SHIELD NO 21565 – 46th PRECINCT** was and still is an employee of **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**.
5. That at all times hereinafter mentioned, the defendant **P.O. RAYMOND DIAZ, SHIELD NO 12449 – 46TH PRECINCT** was and still is an employee of **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**.
6. That on or about August 18, 2022, plaintiff(s) caused a written notice to be served upon the defendants and that said notice was served within ninety (90) days of the incident alleged herein.
7. That more than thirty (30) days have elapsed since the presentation of said notice of claim and that the claim remains unadjusted, as defendants have wholly neglected, failed and refused to make any payment of the same.
8. That plaintiff answered questions at a hearing pursuant to Rule 50-h of the Municipal Law.
9. That this action has been timely commenced.
10. That this action has commenced within one (1) year and ninety (90) days of the date of the direct occurrence herein.
11. That on July 14, 2022, the plaintiff herein, **ELIZABETH RUSSO**, was an employee at Jacobi Medical Center and was attending to an individual in police custody when the incident occurred.
12. That, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD NO 21565 – 46th**

PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO 12449 – 46TH
PRECINCT, their police officers, agents, servants, and/or employees,
departments, agencies, and other affiliates, and those acting under their directions,
behest, and control in the ownership, operation, management, control and
supervision were present.

13. At all times hereinafter mentioned **THE CITY OF NEW YORK, NEW**
YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD
NO 21565 – 46th PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO
12449 – 46TH PRECINCT, their police officers, agents, servants, and/or
employees, departments, agencies, and other affiliates, and those acting under their
directions, behest, and control in the ownership, operation, management, control
and supervision, managed said individual in police custody.
14. At all times hereinafter mentioned **THE CITY OF NEW YORK, NEW**
YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD
NO 21565 – 46th PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO
12449 – 46TH PRECINCT its police officers, agents, servants, and/or employees,
departments, agencies, and other affiliates, and those acting under their directions,
behest, and control in the ownership, operation, management, control and
supervision, supervised said individual in police custody.
15. At all times hereinafter mentioned **THE CITY OF NEW YORK, NEW**
YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD
NO 21565 – 46th PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO

- 12449 – 46TH PRECINCT** its police officers, agents, servants, and/or employees, departments, agencies, and other affiliates, and those acting under their directions, behest, and control in the ownership, operation, management, control and supervision, controlled said individual in police custody.
16. At all times hereinafter mentioned **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD NO 21565 – 46th PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO 12449 – 46TH PRECINCT** its police officers, agents, servants, and/or employees, departments, agencies, and other affiliates, and those acting under their directions, behest, and control in the ownership, operation, management, control and supervision, directed said individual in police custody.
17. That Plaintiff, **ELIZABETH RUSSO.** was injured without any fault or negligence on the part of the Plaintiff contributing thereto.
18. That the aforementioned negligence occurred at the Plaintiff's workplace while Plaintiff was an employee attending to an individual in police custody under the control, direction, supervision and management of the Defendant(s) **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD NO 21565 – 46th PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO 12449 – 46TH PRECINCT.**
19. That by reason of the foregoing, the Plaintiff, **ELIZABETH RUSSO.** was injured, was caused to suffer and will continue to suffer great physical and mental pain as well as loss of enjoyment of life and severe emotional distress; was rendered

sick, sore, lame and disabled; was caused to undergo medical treatment, counseling and advice; was unable to pursue her usual and customary activities; and was otherwise injured and upon information and belief, her injuries are permanent in nature.

20. That at all of the aforementioned acts, committed by agents servants, and/or employees of the defendant **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD NO 21565 – 46th PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO 12449 – 46TH PRECINCT** were committed due to the negligence, recklessness, and carelessness of the aforementioned agents, servants and/or other employees of the defendant(s) **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD NO 21565 – 46th PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO 12449 – 46TH PRECINCT.**
21. That **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD NO 21565 – 46th PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO 12449 – 46TH PRECINCT** were additionally negligent, reckless and careless in the negligent hiring, negligent retention and negligent training of agents, servants and/or employees, including, but not limited to the police officers present at the time of the incident, the officers which was employed by defendants and acting within the scope of their duties at the time of the incident herein.
22. That on July 14, 2022, Defendant's agents, servants, licensees, contractors,

subcontractors, employees and other affiliates, agencies and departments and those acting under its behest and direction, permission and control, while acting within the scope of their duties as an employee of **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD NO 21565 – 46th PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO 12449 – 46TH PRECINCT** lost control and/or failed to prevent the activities that caused the Plaintiff to be injured.

23. That at all times hereinafter mentioned, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD NO 21565 – 46th PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO 12449 – 46TH PRECINCT** their agents, servants and/or employees, departments, agencies and those acting under their directions, behest and control, failed to properly investigate and/or evaluate the results of any investigation of those persons hired to operate, manage, control, and/or supervise said individual in police custody.

24. That at all times hereinafter mentioned, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD NO 21565 – 46th PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO 12449 – 46TH PRECINCT**, their agents, servants and/or employees, departments, agencies and those acting under their directions, behest and control, failed to promulgate proper and/or adequate rules and regulations governing the proper supervision to be provided and rendered by those agents, servants and/or employees

hired to operate, manage, control, and/or supervise said individual in police custody.

25. That on July 14, 2022, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD NO 21565 – 46th PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO 12449 – 46TH PRECINCT** their agents, servants and/or employees, departments, agencies and those acting under their directions, behest and control, failed to adequately monitor the care, guidance, supervision, and/or activities Plaintiff was involved in.
26. That on July 14, 2022, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD NO 21565 – 46th PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO 12449 – 46TH PRECINCT** their agents, servants and/or employees, departments, agencies and those acting under their directions, behest and control, failed to properly and/or adequately screen the individual in police custody involved in the activities of the aforementioned day.
27. That on July 14, 2022, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. JENNIFER ADAMES, SHIELD NO 21565 – 46th PRECINCT, AND P.O. RAYMOND DIAZ, SHIELD NO 12449 – 46TH PRECINCT**, their agents, servants and/or employees, departments, agencies and those acting under their directions, behest and control, allowed the individual in police custody to be unsupervised or improperly supervised, not properly protected, thus failing to provide a safe and proper environment causing the incident

complained of to occur.

28. That by reason of the foregoing and the negligence of the said Defendants, the Plaintiff has been informed and verily believes, her injuries are permanent in nature and she will be caused to suffer permanent embarrassment and continuous pain and inconvenience.

29. That by reason of the foregoing, the Plaintiff, **ELIZABETH RUSSO** has been unable to attend to her usual occupation and avocation in the manner required.

30. That as a result of the foregoing, Plaintiff, **ELIZABETH RUSSO** has been damaged in an amount which exceeds the jurisdictional limit of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

16. Plaintiff repeats and realleges each and every allegation contained in Paragraphs “1” through “30”, with the same force and effect as those set forth herein and at length.

WHEREFORE, Plaintiff, **ELIZABETH RUSSO**, demands judgment against the Defendant(s) in an amount greater than the jurisdictional limits of all lower Courts and is entitled to punitive and exemplary damages in an amount to be proven at the time of trial, together with the costs and disbursements of this action.

Dated: June 22, 2023
Melville, New York

Scott Wolinetz

SCOTT A. WOLINETZ
SCOTT A. WOLINETZ, P.C.
Attorneys for Plaintiff(s)
ELIZABETH RUSSO
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(631) 423-1133

VERIFICATION

Scott A. Wolinetz, Esq., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney for the Infant-Plaintiff, **ELIZABETH RUSSO** in the within action. I have read the annexed **Summons and Verified Complaint** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiffs is that Plaintiffs are not presently in the County wherein the attorneys for the Plaintiff maintain their offices.

Dated: June 22, 2023

Melville, New York

Scott Wolinetz

SCOTT A. WOLINETZ

SCOTT A. WOLINETZ, P.C.

Attorneys for Plaintiff(s)

150 Broadhollow Road, Suite 208

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SUMMONS AND VERIFIED COMPLAINT

SCOTT A. WOLINETZ, P.C.

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